



OCCUPANCY AGREEMENT - BUYER

! IMPORTANT NOTICE TO BUYER/SELLER !

This Occupancy Agreement (Agreement) is not intended for use in long-term tenancies. Generally, landlord/tenant relations are governed by the New Mexico Uniform Owner Resident Relations Act (NMUORRA), a comprehensive body of law that governs landlord/tenant relationships; however, occupancy by a buyer under contract to purchase is exempt from the NMUORRA. Because this Agreement does not address many issues that may arise in a long-term occupancy situation and because the NMUORRA, which would generally address those issues, does not apply to the occupancy by a buyer under contract to purchase, the parties are advised to use a more comprehensive agreement for occupancies longer than seven (7) days and to seek legal advice regarding that agreement.

1. **PARTIES.** _____ ("Buyer") and _____ ("Seller") agree as set forth below, pursuant to the Purchase Agreement between the parties dated _____, _____.
2. **PROPERTY.**

Address (Street, City, State, Zip Code) _____

Legal Description

or see metes and bounds description attached as Exhibit _____, _____ Count(ies), New Mexico.

3. **POSSESSION, TERM.**

- A. Seller will deliver possession of the Property on _____, _____, at _____ ☐ am ☐ pm Mountain Time ("Date of Possession"), provided, however, that Buyer first furnishes to Seller or Seller's Broker:
- i. satisfactory evidence to the effect that Buyer has secured a written mortgage commitment or qualified for the loan assumption; and
 - ii. proof satisfactory to Seller of cash for down payment or Purchase Price.
- B. The term of this Agreement ("Occupancy Period") will extend through the Funding Date set forth in the Purchase Agreement ("Funding Date"). The parties intend to create a day-to-day tenancy until the Funding Date.
- C. In the event the sale of the Property is not consummated, Buyer shall vacate the Property within _____ days after written notice by Seller.
- D. (Check all applicable) ☐ Buyer ☐ Seller will document the condition of the Property at the time of possession by ☐ video/photographs ☐ written report ☐ other _____.

4. **PAYMENT.**

- A. **Deposit.** Payments are payable in advance beginning on the date of this Agreement. Buyer shall pay to Seller a deposit of \$ _____ to cover any damages suffered by Seller as a result of Buyer's occupancy. If Buyer fully performs all obligations under this Agreement, Seller shall refund the Deposit to Buyer on Funding Date or within _____ days of Buyer vacating Property, whichever shall occur first. If Buyer fails to fully perform Buyer's obligations under this Agreement, the Deposit shall be applied to damages suffered by Seller.
- B. **Occupancy Fee.** Buyer shall pay to Seller the sum of \$ _____ per day, excluding Funding Date, for the use of the Property. Seller shall refund any unused portion of the Occupancy Fee to Buyer on Funding Date or within _____ days of Buyer vacating the property, whichever occurs first.
- C. **Holdover Charges.** If the sale of the Property is not consummated, **Buyer shall vacate the Property by the date set forth in Paragraph 3C.** If Buyer fails to do so, Buyer shall pay to Seller the Occupancy Fee **PLUS an additional Holdover Charge** of \$ _____ per day until Buyer vacates the Property and Property is restored to its former condition. **Seller's acceptance of any Holdover Charge does NOT serve as an agreement by Seller to extend the Occupancy Period.**

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D. Due and Payable. Deposits and Occupancy Fees are payable in advance beginning on the date of this Agreement. Holdover Charges, if applicable, are due daily as such charges are incurred. All payments shall be delivered to: _____.

5. **EXPENSES.** Buyer agrees to pay all expenses in connection with Buyer's occupancy of the Property, including, but not limited to: utilities, fuel, maintenance of lawn, and snow removal, and further agrees to notify all utility companies servicing the Property that all meters for such utilities shall be placed in Buyer's name, if allowed.
6. **INSURANCE, MAINTENANCE, REPAIR.** During the term of this Agreement:
 - A. Buyer agrees to procure and maintain in effect, prior to entering into possession, a policy of insurance adequately covering Buyer's personal property and insuring against public liability which may arise by virtue of the use and occupancy of the Property by Buyer.
 - B. Seller agrees to maintain a policy or policies of insurance adequately covering the Property and insuring against fire, extended coverage and public liability. **SELLER SHALL CONFIRM THAT SELLER'S POLICY COVERS THE FOREGOING, EVEN THOUGH BUYER IS OCCUPYING THE PROPERTY.**
 - C. ☐ Seller or ☐ Buyer is responsible for maintaining the Property, the heating, plumbing, electrical, and sewage systems, and will make such repairs that are reasonably necessary from the date of possession to the Closing date or to the date Property is surrendered to Seller.
7. **ACCESS.** With reasonable notification to Buyer, Seller, Seller's representatives, and inspectors shall have the right to inspect the Property and complete all necessary work.
8. **ALTERATIONS, INDEMNITY.** Buyer agrees to make no alterations without the prior written consent of Seller during the term of this Agreement. Buyer agrees to indemnify and hold Seller harmless from any and all claims, materialmen's or mechanics' liens, demands, actions, causes of action, damages, expenses, losses or liabilities arising in any way from Buyer's occupancy, use or enjoyment of the Property.
9. **TERMINATION.** If the sale is not consummated by the Funding Date, Buyer will:
 - A. Peacefully deliver the Property, returning the Property to Seller in same condition, ordinary wear and tear excepted, as when Buyer entered possession;
 - B. Pay for all damages to the Property, if any, which occurred during the Occupancy Period, caused by Buyer, and for all costs necessary to restore the Property to the condition on Date of Possession, including the deductible on any policy of insurance secured by Seller;
 - C. Furnish proof of release of claims for improvements made to the Property during the term of this Agreement.
10. **ATTORNEY FEES AND COSTS.** Should any aspect of this Agreement result in arbitration or litigation, the prevailing party of such action shall be entitled to an award of reasonable attorneys' fees and court costs.
11. **MANAGEMENT.** No Broker has any responsibility to manage the Property during the Occupancy Period. To comply with Real Estate Commission policy, if any Broker is responsible for handling any funds in connection with this Occupancy Agreement, a Property Management Agreement must be signed. Repairs and maintenance incidental to sale and authorized by Seller shall not be considered property management.
12. **ENTIRE AGREEMENT.** This Agreement contains the entire Agreement between the parties relating to the subject matter and supersedes any previous agreements, arrangements, undertakings or proposals, oral or written. This Agreement may be varied only by a document signed by both parties.
13. **FORCE MAJEURE.** Neither party shall be liable for delay or failure to perform any obligation under this Agreement if the delay or failure is caused by any circumstance beyond their reasonable control, including but not limited to, acts of God, war, civil unrest or industrial action.
14. **GOVERNING LAW AND VENUE.** This Agreement is to be construed in accordance with and governed by the internal laws of the State of New Mexico without giving effect to any choice-of-law rule that would cause the application of the laws of any jurisdiction other than the internal laws of the State of New Mexico to the rights and duties of the parties. Each party hereby irrevocably consents to the jurisdiction and venue of the state and federal courts located in the county in which the Property or any portion of the Property is located in connection with any claim, action, suit, or proceeding relating to this Agreement and agrees that all suits or proceedings relating to this Agreement shall be brought only in such courts.
15. **SEVERABILITY.** If any portion of this Agreement is found by any court of competent jurisdiction to be invalid or unenforceable, the remainder of this Agreement shall remain in full force and effect.



NEW MEXICO ASSOCIATION OF REALTORS® — 2025
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BUYER(S)

Buyer Signature _____ Printed Name _____ Date _____ Time _____

Buyer Signature _____ Printed Name _____ Date _____ Time _____

If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

BUYER'S BROKER

Broker Name _____

Qualifying Broker's Name _____ Qualifying Broker's NMREC License No. _____

Brokerage Firm _____ Office Phone _____ Fax _____

Brokerage Address _____ City _____ State _____ Zip Code _____

Email Address _____ Broker ☐ is ☐ is not a REALTOR®

SELLER(S)

Seller Signature _____ Printed Name _____ Date _____ Time _____

Seller Signature _____ Printed Name _____ Date _____ Time _____

If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

SELLER'S BROKER

Broker Name _____

Qualifying Broker's Name _____ Qualifying Broker's NMREC License No. _____

Brokerage Firm _____ Office Phone _____ Fax _____

Brokerage Address _____ City _____ State _____ Zip Code _____

Email Address _____ Broker ☐ is ☐ is not a REALTOR®